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Case Number: 25NNCV03400 Hearing Date: July 10, 2026 Dept: T

Sierra

Canyon School vs. Andrew P. Brown, et al.

Motion

to Deem Admitted the First Set of Requests for Admission Propounded on Defendant Michelle Listenbee Brown

Moving Party: Plaintiff Sierra Canyon

School

Responding Party: None

Tentative Ruling: Grant

BACKGROUND

This action arises from an alleged failure to pay Plaintiff

Sierra

Canyon School ("Plaintiff") for debts accrued under a student reenrollment agreement.

On March 11, 2026, Plaintiff served its first set of requests

for admission upon Defendant

Michelle Listenbee Brown ("Defendant"). No

timely response to these admission requests was received.

Plaintiff now moves to deem the

truth of the matters specified in these requests admitted.

No opposition was filed.

MOVING

PARTY POSITION

Plaintiff argues that because Defendant has yet to respond to the properly served first set of requests for admission, the Court should deem admitted the truth of any matters specified in these requests and award sanctions in the total amount of \$1,883.70.

OPPOSITION

No opposition was filed.

REPLY

No reply was filed.

ANALYSIS

I.

Legal

Standard

A. Deem Admitted Requests for Admission

Where there has been no timely response to a request for admission under Code of Civil Procedure section 2033.010, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction.

(Code Civ. Proc. § 2033.280, subd. (b).)

The party who failed to respond waives any objections to the demand, unless the court grants that party relief from the waiver, upon a showing that the party (1) has subsequently served a substantially compliant response, and (2) that the party's failure to respond was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc. § 2033.280, subds.

(a)(1)-(2).) The court "shall" grant a

motion to deem admitted requests for admissions, "unless it finds that the party to whom the requests for admission have been directed has served, before

the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Code Civ. Proc. § 2033.280, subd. (c).) ٤٤٤

Where a party fails to provide a timely response to requests for admission, “[i]t is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc. § 2033.280, subd. (c).) ٤٤

II. Discussion

A. Requests for Admission

On March 11, 2026, Plaintiff served Defendant electronically and by mail with the first set of requests for admission at the following service address: “4121 Radford Ave., Apt. 411 Studio City, CA 91604.” (Frischer Decl. ¶ 2, Exh. 1.)

The Court also notes that this service address is the same residential address where Defendant was personally served with summons. (Proof of Personal Service, 10/15/25.) Thus, the Court finds that the requests were properly served on Defendant.

As a result, Defendant was required to serve its response to Plaintiff’s first set of requests for admission by April 15, 2026. (Code Civ. Proc. § 2033.250, subd. (a) [requiring service of a response within 30 days after service of requests for admission]; Code Civ. Proc. § 1013, subd. (a) [extending this 30-day period by 5 days for service by mail].) However, no response was served by this deadline or as of the motion’s filing date. (Frischer Decl. ¶ 4.) Because Defendant failed to serve a timely response, Plaintiff properly brings this deemed admitted motion under Section 2033.280(b). (Code Civ. Proc. § 2033.280 [setting forth the applicable rules when a party fails to serve a timely response to requests for admission].)

“[I]n the event timely RFA responses are not served, the court is required to grant the propounding party’s deemed admitted motion ‘unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a

proposed response to the requests for admission that is in substantial compliance with Section 2033.220.' [Citation.]" (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 778.) As the motion is unopposed, and as there is no evidence before the Court establishing that Defendant served a substantially compliant response to Plaintiff's requests before the hearing date, the Court "shall" make the requested order. (Code Civ. Proc. § 2033.280, subd. (c).)

Therefore, the motion to deem admitted is granted.

B. Sanctions

Plaintiff seeks \$1,883.70 in monetary sanctions. This amount is based on a \$600.00 hourly rate applied to 3 hours of total work in connection with the motion, plus recovery of the \$60.00 filing fee and a \$23.70 e-filing fee. (Frischer Decl. ¶ 6.) However, the Court finds this amount to be excessive and facially unreasonable given the motion's lack of complexity and the lack of any opposition to it necessitating further work by Plaintiff's counsel. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1300 ["[A]s with any request for sanctions, the trial court retains broad discretion to use rational methods to reduce a requested amount in order to reach a reasonable award."].) Thus, the Court shall reduce the requested amount by \$900.00, reflecting a 1.5-hour reduction in the total hours of work attributed to the motion. (Ibid.)

Therefore, the request for sanctions is granted in the reduced total amount of \$937.00.

RULING

Plaintiff

Sierra Canyon School's Motion to Deem Admitted the First Set of Requests for Admission Propounded on Defendant Michelle Listenbee Brown is GRANTED.

Plaintiff's

request for monetary sanctions is GRANTED IN PART in the reduced total amount of \$937.00 against Defendant. Said monetary sanctions shall be paid to counsel for Plaintiff within 30 days of this order.

Sierra

Canyon School vs. Andrew P. Brown, et al.

Motion

to Compel Defendant

Michelle Listenbee Brown's

Responses to Special Interrogatories, Set One

Moving Party: Plaintiff Sierra Canyon

School

Responding Party: None

Tentative Ruling: Grant

BACKGROUND

This action arises from an alleged failure to pay

Plaintiff Sierra

Canyon School ("Plaintiff") for debts accrued under a student reenrollment agreement.

On March 11, 2026, Plaintiff served its first set of special interrogatories upon Defendant

Michelle Listenbee Brown ("Defendant"). No timely response to these special interrogatories was received.

Plaintiff now moves to compel responses to these special interrogatories.

No opposition was filed.

MOVING

PARTY POSITION

Plaintiff argues that because Defendant has yet to respond to the properly served first set of special interrogatories, the Court should compel verified code-compliant responses to these special interrogatories and award sanctions in the amount of \$1,883.70.

OPPOSITION

No opposition was filed.

REPLY

No reply was filed.

ANALYSIS

I. Legal

Standard

A. Compel Initial Responses to Interrogatories

If

a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses. (Code Civ. Proc. § 2030.290, subd. (b).) Failure to timely respond waives all objections, including privilege and work product, unless “[t]he party has subsequently served a response that is in substantial compliance” and “[t]he party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.” (Code Civ. Proc. § 2030.290, subds. (a)(1), (a)(2).)

The

statute contains no time limit for a motion to compel where no responses have been served, and no meet and confer is required when a party does not respond to discovery requests. All that must be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (See *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906.)

If

a motion to compel responses is filed, the Court shall impose a monetary sanction against the losing party “unless it finds that the one subject to the

sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

(Code Civ. Proc., § 2030.290, subd. (c).) Further, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

II. Discussion

A. Interrogatories

On March 11, 2026, Plaintiff served Defendant electronically and by mail with the first set of special interrogatories at the following service address: “4121 Radford Ave., Apt. 411 Studio City, CA 91604.” (Frischer Decl. ¶ 2, Exh. 1.) The Court also notes that this service address is the same residential address where Defendant was personally served with summons. (Proof of Personal Service, 10/15/25.) Thus, the Court finds that the interrogatories were properly served on Defendant.

As a result, Defendant was required to serve its responses to these interrogatories by April 15, 2026. (Code Civ. Proc. § 2030.260, subd. (a) [requiring service of a response within 30 days after service of interrogatories]; Code Civ. Proc. § 1013, subd. (a) [extending this 30-day period by 5 days for service by mail].) However, no responses were served by this deadline or as of the motion’s filing date. (Frischer Decl. ¶ 4.)

Therefore, as Defendant failed to serve timely responses to these special interrogatories, the motion is granted.

B. Sanctions

Plaintiff seeks \$1,883.70 in monetary sanctions. This amount is based on a \$600.00 hourly rate applied to 3 hours of total work in connection with the motion, plus recovery of the \$60.00 filing fee and a \$23.70 e-filing fee. (Frischer Decl. ¶ 6.) However, the Court finds this amount to be

excessive and facially unreasonable given the motion's lack of complexity and the lack of any opposition to it necessitating further work by Plaintiff's counsel. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1300 ["[A]s with any request for sanctions, the trial court retains broad discretion to use rational methods to reduce a requested amount in order to reach a reasonable award."].)

Thus, the Court shall reduce the requested amount by \$900.00, reflecting a 1.5-hour reduction in the total hours of work attributed to the motion. (Ibid.)

Therefore, the request for sanctions is granted in the reduced total amount of \$937.00.

RULING

Plaintiff Sierra Canyon

School's Motion to Compel Defendant Michelle Listenbee Brown's Responses to Special Interrogatories, Set One, is GRANTED. Said responses are due no later than 20 days after Plaintiff serves notice of this ruling.

Plaintiff's

request for monetary sanctions is GRANTED IN PART in the reduced total amount of \$937.00 against Defendant. Said monetary sanctions shall be paid to counsel for Plaintiff within 30 days of this order.

Sierra

Canyon School vs. Andrew P. Brown, et al.

Motion

to Compel Defendant

Michelle Listenbee Brown's

Responses to Requests for Production, Set One

Moving Party: Plaintiff Sierra Canyon
School

Responding Party: None

Tentative Ruling: Grant

BACKGROUND

This action arises from an alleged failure to pay
Plaintiff Sierra
Canyon School ("Plaintiff") for debts accrued under a student reenrollment
agreement.

On March 11, 2026, Plaintiff served its first set of requests
for production upon Defendant
Michelle Listenbee Brown ("Defendant"). No
timely response to these requests was received.

Plaintiff now moves to compel
responses to these production requests.

No opposition was filed.

MOVING PARTY POSITION

Plaintiff argues that because Defendant has yet to
respond to the properly served first set of requests for production, the Court
should compel verified code-compliant responses to these production requests and
award sanctions in the amount of \$1,883.70.

OPPOSITION

No opposition was filed.

REPLY

No reply was filed.

ANALYSIS

I. Legal Standard

A. Compel Initial Responses to Requests for Production

Under

Code of Civil Procedure section 2031.300, if a party fails to serve a timely response to a demand for inspection, the party making the demand may move for an order compelling response to the demand. (Code Civ. Pro § 2031.300, subd. (b).) The party who fails to serve a timely response to a demand for inspection waives any objection to the demand unless the court finds that the party has subsequently served a response that is in substantial compliance or party's failure was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc. § 2031.30, subds. (a)(1)-(2).)

Courts

shall impose a monetary sanction against any party who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection unless the party acted with substantial justification or other circumstances make the imposition of the sanction unjust. (Code Civ. Proc. § 2031.300, subd. (c).)

II. Discussion

A. Requests for Production

On March 11, 2026, Plaintiff served Defendant electronically and by mail with the first set of requests for production at the following service address: "4121 Radford Ave., Apt. 411 Studio City, CA 91604." (Frischer Decl. ¶ 2, Exh. 1.) The Court also notes that this service address is the same residential address where Defendant was personally served with summons. (Proof of Personal Service, 10/15/25.) Thus, the Court finds that the requests were properly served on Defendant.

As a result, Defendant was required to serve its responses to these production requests by April 15, 2026. (Code Civ. Proc. § 2031.260, subd. (a) [requiring service of a response within 30 days after service of requests for production]; Code Civ. Proc. § 1013, subd. (a) [extending this 30-day period by 5 days for service by mail].) However, no responses were served by this deadline or as of the motion's filing date. (Frischer Decl. ¶ 4.)

Therefore, as Defendant failed to serve timely responses to these production requests, the motion is granted.

B. Sanctions

Plaintiff seeks \$1,883.70 in monetary sanctions. This amount is based on a \$600.00 hourly rate applied to 3 hours of total work in connection with the motion, plus recovery of the \$60.00 filing fee and a \$23.70 e-filing fee. (Frischer Decl. ¶ 6.) However, the Court finds this amount to be excessive and facially unreasonable given the motion's lack of complexity and the lack of any opposition to it necessitating further work by Plaintiff's counsel. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1300 ["[A]s with any request for sanctions, the trial court retains broad discretion to use rational methods to reduce a requested amount in order to reach a reasonable award."].) Thus, the Court shall reduce the requested amount by \$900.00, reflecting a 1.5-hour reduction in the total hours of work attributed to the motion. (Ibid.)

Therefore, the request for sanctions is granted in the reduced total amount of \$937.00.

RULING

Plaintiff Sierra Canyon School's Motion to Compel Defendant Michelle Listenbee Brown's Responses to Requests for Production, Set One, is GRANTED. Said responses are due no later than 20 days after Plaintiff serves notice of this ruling.

Plaintiff's request for monetary sanctions is GRANTED IN PART in the reduced total amount of \$937.00 against Defendant. Said monetary sanctions shall be paid to counsel for Plaintiff within 30 days of this order.